

106	Purcell vs. Potratz 2019-01115653	1. Motion to Appear Pro Hac Vice 2. Status Conference Defendants GPB Capital Holdings II, L.P.; GPB Automotive Portfolio, L.P.; and GPB Capital Holdings, LLC's application for pro hac vice admission of attorney Glen A. Kopp is GRANTED. On or before the anniversary of the date of this order, if this attorney remains counsel for the moving parties, the moving parties must pay an annual renewal fee of five hundred dollars (\$500) for each year that the attorney maintains pro hac vice status in this case. (Gov. Code, § 70617, subd. (e)(2).) Moving parties shall provide notice.
107	Aguilar vs. Omni Logistics LLC 2025-01490214	1. Demurrer to Complaint 2. Case Management Conference Defendant Omni Logistics, LLC has filed a demurrer to abate/stay under Code of Civil Procedure (CCP) section 430.10, subdivision (c) or, in the alternative, a motion to stay the instant action based upon the doctrine of exclusive concurrent jurisdiction. (ROA #20.) Plaintiff Miguel Aguilar did not file an opposition to the motion. Plaintiff's failure to oppose the demurrer/motion may be treated as an abandonment of the issue or implied concession on the merits. (See <i>Herzberg v. County of Plumas</i> (2005) 133 Cal.App.4th 1, 20.) The Court has considered the substance of Defendant's demurrer/motion. The Court SUSTAINS IN PART the demurrer as to the requested order to abate or stay the instant action but OVERRULES the demurrer to the extent it seeks such an order without leave to amend. Nevertheless, the Court GRANTS Defendant's motion to stay under the doctrine of exclusive concurrent jurisdiction. Accordingly, the Court ORDERS that the instant action is stayed pending the final resolution of <i>Magana v. OMNI Logistics, LLC</i>, Los Angeles Superior Court Case No. 24STCV24638. (See CCP, § 1049 ["An action is deemed to be pending from the time of its commencement until its final determination upon appeal, or until the time for appeal has passed, unless the judgment is sooner satisfied.].) Defendant's Requests for Judicial Notice at ROA #18 and ROA #52 are GRANTED. (Evid. Code, § 452, subd. (d).) "A plea in abatement pursuant to section 430.10, subdivision (c), may be made by demurrer or answer when there is another action pending between the same parties on the same cause of action." (<i>Plant Insulation Co. v. Fiberborad Corp.</i> (1990) 224 Cal.App.3d 781, 787, emphases omitted.) Here, the Court finds that the <i>Magana</i> action is such an action based upon the allegations of the operative complaint in this action and the facts judicially noticed.

“The only relief to which a litigant is entitled upon the plea, by either demurrer or answer, that a prior action between the same parties is pending and undetermined is the judgment specified by section 597, Code of Civil Procedure, that the second action abate.” (*Lord v. Garland* (1946) 27 Cal.2d 840, 851.) Here, Defendant’s notice of demurrer stated that it “demur[s] to the complaint under California Code of Civil procedure section 430.10(c)” and seeks an order “to abate/stay the instant action.” (ROA #20, p. 2.) Therefore, the only relief to which Defendant is entitled is the judgment specified by CCP section 597.

The judgment permitted under CCP section 597 is an “interlocutory judgment . . . entered in favor of the defendant . . . that no trial of other issues shall be had until the final determination of that other action.”

Although Defendant’s Notice of Plaintiff’s Non-Opposition contends that the instant case is now “subject to dismissal” because the *Magana* action has reached a final judgment (ROA #51, p. 2; see also ROA #52), the Court notes that Defendant’s demurrer was noticed as being brought under CCP section 430.10, subdivision (c), and the demurrer seeks only abatement or a stay. “When a demurrer is sustained on the ground of another action pending, the proper order is not a dismissal, but abatement of further proceedings pending termination of the first action.” (*Plant Insulation Co. v. Fibreborad Corp.* (1990) 224 Cal.App.3d 781, 787, citing CCP, § 597 and *Lord, supra*, 27 Cal.2d at p. 851; see also *Cal. Union Insurance Co. v. Trinity River Land Co.* (1980) 105 Cal.App.3d 104, 109, fn. 3 [“the appropriate action [is] an abatement, not a dismissal”].)

Moreover, when sustaining a demurrer based upon CCP section 430.10, subdivision (c), it would be “an abuse of discretion to withhold leave to amend.” (*Lord, supra*, 27 Cal.2d at p. 851.) Therefore, the Court declines to sustain the instant demurrer without leave to amend, as requested by Defendant.

However, the Court also notes that the instant ruling is **without prejudice to Defendant bringing another demurrer** to “plead the res judicata effect of the [*Magana*] judgment in bar of the subsequent action” upon the expiration of the stay in this action. (*Id.* [“If a judgment upon the merits is rendered in the suit first commenced, the party asserting the plea in abatement should be granted leave to amend to plead the res judicata effect of the judgment in bar of the subsequent action”].)

Nevertheless, the Court rules that a stay is warranted under the doctrine of exclusive concurrent jurisdiction. “Unlike the statutory plea of abatement, the rule of exclusive concurrent jurisdiction does not require absolute identity of parties, causes of action or remedies sought in the initial and subsequent actions.” (*Plant, supra*, 224 Cal.App.3d at p. 788.) Therefore, even if there is not an absolute identity of parties, causes of action or remedies sought between the *Magana* action and the instant action, the Court may stay the instant action under the rule of exclusive concurrent jurisdiction because the Court finds that the *Magana* court “has the power to bring before it all the necessary parties” and “the power to litigate all the

		issues and grant all the relief to which any of the parties might be entitled under the pleadings.” (<i>Id.</i>) Defendant shall give notice.
108	Bojorquez vs. Hood Pacific Contractors, Inc.	Motion for Leave to Amend Plaintiff Jose Bojorquez’s Motion for Leave to File Second Amended Complaint is GRANTED. (Code Civ. Proc. [CCP], § 473, subd. (a)(1).) Plaintiff Bojorquez seeks an order granting him leave to file a second amended complaint (SAC) solely to add a new named plaintiff, Filiberto Rodriguez Murillo, as an additional class representative. The SAC still asserts the exact same claims, based on the same policies and practices, during the same class period already at issue in the operative complaint. (ROA #42, Mot. P&A, p. 1.) Defendant Hood Pacific Contractors, Inc. opposes the motion solely on the ground that on 6/18/2026, the Court granted Defendant’s motion to compel arbitration and (1) ordered Plaintiff Bojorquez to arbitrate his individual claims against Defendant, (2) dismissed Plaintiff Bojorquez’s class claims due to the class waiver in Plaintiff Bojorquez’s arbitration agreement with Defendant, and (3) stayed Plaintiff Bojorquez’s remaining PAGA claim pending completion of the arbitration pursuant to CCP section 1281.4. (ROA #71, Opp., at p. 1, citing ROA #69 [6/18/2026 minute order].) Defendant contends that Plaintiff’s motion for leave to amend “violates this Court’s order, is brought in the wrong forum (Court versus arbitration), and would require Hood . . . to litigate in two different forums.” (<i>Id.</i>) Defendant contends that “[i]f the Court elects to entertain Plaintiff’s motion despite the stay, Defendant would be prejudiced by permitting amendment of Plaintiff Bojorquez s first amended complaint because (1) it would force Defendant to litigate in two forums regarding the same case at the same time and (2) permit Plaintiff Murillo to circumvent both the Court’s stay and dismissal of the Class claims.” (<i>Id.</i>) All of Defendant’s arguments lack merit. The Court’s 6/18/2026 order granted a stay of Plaintiff Bojorquez’s remaining PAGA claim pending completion of the ordered arbitration under CCP section 1281.4. (ROA #69.) That statute provides, in relevant part: If a court . . . has ordered arbitration of a controversy <i>which is an issue involved in an action or proceeding pending before a court of</i>

		<i>this State</i>, the court in which such action or proceeding is pending shall, upon motion of a party to such action or proceeding, stay the action or proceeding until an arbitration is had in accordance with the order to arbitrate or until such earlier time as the court specifies. (CCP, § 1281.4, emphasis added.) Accordingly, the Court stayed Plaintiff Bojorquez’s remaining PAGA claim because the Court had compelled arbitration of <i>Plaintiff Bojorquez’s individual claims</i> against Defendant to arbitration, and his remaining PAGA claim involves at least some of the same issues that will be arbitrated. Indeed, “[t]he purpose of the statutory stay is to protect the jurisdiction of the arbitrator by preserving the status quo until arbitration is resolved. In the absence of a stay, the continuation of the proceedings in the trial court disrupts the arbitration proceedings and can render them ineffective.” (<i>Heritage Provider Network, Inc. v. Super. Ct.</i> (2008) 158 Cal.App.4th 1146, 1152, internal quotes & citations omitted; see also <i>SWAB Financial, LLC v. E*Trade Securities, LLC</i> (2007) 150 Cal.App.4th 1181, 1199-1200, internal quotes omitted, emphases added [after imposing stay pursuant to CCP section 1281.4, “the trial court’s power to <i>interfere in the pending arbitration was strictly limited</i>,” as “the action at law sits in a twilight zone of abatement with the trial court retaining merely vestigial jurisdiction <i>over matters submitted to arbitration</i>”].) The instant motion for leave to amend to <i>add a new plaintiff</i> does not affect the arbitrator’s jurisdiction over <i>Plaintiff Bojorquez’s individual claims against Defendant</i> in any way. Therefore, granting the instant motion would not violate the stay under CCP section 1281.4. Nor is the instant motion brought in the wrong forum. As the arbitration ordered by the Court is only as to <i>Plaintiff Bojorquez’s individual claims against Defendant</i>, the arbitrator has no jurisdiction over <i>another plaintiff’s claims against Defendant</i>. Additionally, even where the original named plaintiff’s individual claims against a defendant are dismissed, the court retains jurisdiction over the case until a final judgment is entered. (See <i>Shapell Industries, Inc. v. Super Ct.</i> (2005) 132 Cal.App.4th 1101, 1108-1109.) Defendant has also failed to explain why <i>its arbitration agreement with Plaintiff Bojourquez</i> insulates Defendant from having to litigate claims asserted by another plaintiff. Although Defendant contends in its opposition that the proposed new “Plaintiff Murillo has an arbitration agreement as well” (Opp. at p. 2), this assertion is not supported by any admissible evidence. Moreover, just because Defendant alleges Plaintiff Murillo “has an arbitration agreement” does not necessarily mean the arbitration agreement is valid or enforceable. These issues are not ripe for adjudication at this time. (See <i>Atkinson v. v. Elk Corp.</i> (2003) 109 Cal.App.4th 739, 760 [“better course of action” is to grant leave to amend the complaint “and then let the parties test its legal sufficiency in other appropriate proceedings”].) At bottom, Defendant has failed to show why the instant complaint may not be amended to add a new plaintiff. CCP section 473, subdivision (a)(1)
--	--	--

		provides that “[t]he court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading . . . by adding . . . the name of any party.” “Amendments to complaints under Code of Civil Procedure section 473, subdivision (a), are liberally allowed to substitute in plaintiffs with standing for original plaintiffs without standing.” (<i>CashCall, Inc. v. Super. Ct.</i> (2008) 159 Cal.App.4th 273, 287, internal quotes omitted, citing <i>Cloud v. Northrop Grumman Corp.</i> (1998) 67 Cal.App.4th 995, 1004-1011.) This “general rule allowing substitution of new plaintiffs with standing in place of original plaintiffs without standing applies to class actions” and equally to “a plaintiff who initially had standing when the class action complaint was filed, but subsequently lost his or her standing” and to “a plaintiff who never had standing when the complaint was filed.” (<i>Id.</i> at pp. 288-289.) Plaintiff shall give notice.
109	Jefferson vs. Alignment healthcare USA, LLC, a Delaware limited liability company; 2026-01546489	Motion to Compel Arbitration In light of Plaintiff Jenny Jefferson’s Non-Opposition (ROA #21) to Defendant Alignment Healthcare USA, LLC’s Motion to Compel Individual Arbitration of Plaintiff’s Claims and Dismiss Action (ROA #14), the Court GRANTS Defendant’s motion. Plaintiff is ORDERED to arbitrate her individual claims against Defendant. Plaintiff’s class claims against Defendant are hereby DISMISSED WITHOUT PREJUDICE as to the rights of the absent putative class members. This action is otherwise STAYED until the arbitration is had pursuant to Code of Civil Procedure section 1281.4. An ADR review hearing is scheduled for February 25, 2027 at 9:30AM in Department CX102. The parties shall submit a joint status report 10 days in advance of the hearing. Defendant shall give notice of this ruling.
110	NB CP Cincy, DST vs. Versity Invest, LLC 2026-01543537	Motion to Compel Mediation All Defendants’ Motion to Compel Mediation and Stay Proceedings Pending Mediation is DENIED. Defendants, as the moving parties, have not established that the Court has authority to compel mediation in this case. In their opening brief, Defendants cite Code of Civil Procedure (“CCP”) section 1775. (Mot. at p. 7.) However, CCP sections 1775, et seq. relate to the Civil Action Mediation Program, which is a separate court-ordered program that also applies only mandatorily to Los Angeles County Superior Court. (CCP, § 1775.2, subd. (a).) Defendants make no showing that this case even falls under CCP sections 1775, et seq. Defendants also Evidence Code section 1116. (Mot. at p. 10.) But Evidence Code sections 1115, et seq. deal with the <i>confidentiality</i> of mediation proceedings, and section 1116, subdivision (a) explicitly states that